



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 07, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21400

EXPIRATION DATE: 2022-12-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Advance Research Chemicals, Inc.
Catoosa, OK
2. PURPOSE AND LIMITATIONS:
 - a. This emergency special permit authorizes the transportation in commerce of a DOT specification 3AA2400 cylinder, containing anhydrous hydrogen fluoride, with a leak in the valve which has been repaired temporarily using a Cylinder Emergency "A" Kit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.3 in that 3AA cylinders containing anhydrous hydrogen fluoride are not authorized to be transported with leaking valves which have been temporarily repaired using an emergency kit and 173.301(c) in that the package must be marked with the special permit number, except as provided herein.
5. BASIS: This emergency special permit is based on the application of Advance Research Chemicals, Inc. dated June23, 2022, submitted in accordance with § 107.117 and the determination it was necessary to protect life and property.

Tracking Number: 2022064989

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrofluoric acid, anhydrous, see Hydrogen fluoride, anhydrous	8	UN1052	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a leaking DOT Specification 3AA2400 cylinder. The cylinder must be equipped with a Cylinder Emergency "A" Kit to prevent leakage during transportation. The working pressure of the emergency kit must exceed the marked service pressure of the cylinder.

b. OPERATIONAL CONTROLS:

- (1) The cylinder shall be transported inside a dedicated box truck.
- (2) The cylinder and its appurtenances shall be wrapped with a cushioning material and shrink-wrapped.
- (3) The cylinder shall be braced and blocked against the wall of the truck to prevent movement during transportation.
- (4) The transport vehicle shall be staffed by (2) two hazardous material certified drivers who stop every four (4) hours, or as needed, to inspect the exterior of the transport vehicle to ensure the integrity of the security seal and to exchange driving duties.
- (5) The transport vehicle shall be equipped with a hazardous materials response box that must contain Personal Protective Equipment (PPE) for the driving crew, including Full-face Air-Purifying Respirators (APR) with Organic Vapor/Acid (OVA) filter cartridges, chemical neutralizing solution and an Anhydrous Ammonia Cylinder Emergency Kit.
- (6) The Bill of Lading shall state that, as a Class 8 material, no placard is required.

8. SPECIAL PROVISIONS:

- a. Transportation is authorized for a single movement from Doral, FL to the special permit holder's facility in Catoosa, OK.
- b. The total transportation time shall not exceed 48 hours.
- c. The marking requirements of § 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BM/TG